

Jugal Kishore vs State & Ors on 12 November, 2020

Author: Anu Malhotra

Bench: Anu Malhotra

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ CRL.M.C. 1901/2020

JUGAL KISHORE

Through:

..... Petition
Mr.Prateek Prabhakar, Advoca
petitioner in person

Versus

STATE & ORS.

Through:

..... Resp
Mr.Kamal Kumar Ghei, APP for
with SI Sanjay Kumar PS Pras
Nagar
Mr.Vishal Sharma, Adv for R-
with respondents No. 2 and 3
person

CORAM:

HON'BLE MS. JUSTICE ANU MALHOTRA
ORDER

% 12.11.2020 (Through physical hearing) Exemption allowed, subject to all just exceptions.

The petitioner vide the present petition seeks the quashing of the FIR No.250/2018, PS Prasad Nagar under Sections 308/324/323/506 of the Indian Penal Code, 1860, submitting to the effect that a settlement has since been arrived at between the parties by the Counselling Cell settlement dated 15.5.2019 in the Court of the Judge, Family Courts, Central District, Tis Hazari Courts, Delhi, and pursuant thereto the marriage between the petitioner and the respondent No.2 has since been dissolved vide a decree of Signature Not Verified Digitally Signed By:SUMIT GHAI Signing Date:12.11.2020 19:25:38 This file is digitally signed by PS to HMJ ANU MALHOTRA.

divorce through mutual consent under Section 13 B(2) of the Hindu Marriage Act, 1955, dated 4.10.2019 in HMA No. 1535/2019 of the Court of the Judge Family Courts, Central District, Tis Hazari Courts, Delhi and that a total sum of Rs.1,50,000/- has since been paid to the respondent No.2 and no useful purpose would be served by the continuation of the proceedings qua the FIR in question.

The Investigating Officer of the case is present and has identified the petitioner as being the accused arrayed in the FIR, respondent No.2 as being the complainant of the FIR in question and has also identified the respondent no.3 as being the injured.

The respondent no.2 in reply to a specific Court query affirms the factum of settlement arrived at between the petitioner and the respondent No.2 as well as the factum of divorce between the petitioner and the respondent No.2 vide a decree of divorce dated 4.10.2019 in HMA No. 1535/2019 of the Court of the Judge Family Courts, Central District, Tis Hazari Courts, Delhi. The respondent No.2 has also stated that she has received the total settled sum of Rs.1,50,000/- from the petitioner and submits that she does not oppose the prayer made by the petitioner seeking quashing of the FIR No. 250/2018, PS Prasad Nagar under Sections 308/324/323/506 of the Indian Penal Code, 1860 nor does she want the petitioner to be punished in relation thereto. She further submitted that though she has studied till VIII standard, she understands the implications of making a statement and has made her statement voluntarily of her own accord without any duress, pressure or coercion from any quarter.

To similar effect is the statement made by the respondent No.3, the mother of respondent no.2.

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As regards the submission that has been made by the respondent no.2 that she be not harassed any further, the petitioner has stated on oath that he would not harass the respondent no.2.

In as much as there appears no reason to disbelieve the statement made by the respondent No.2 & 3 that they have arrived at a settlement with the petitioner voluntarily of their own accord without any duress, pressure or coercion from any quarter and as the FIR apparently emanates due to a matrimonial discord which has since been resolved vide a decree of divorce dated 4.10.2019 in HMA No. 1535/2019 of the Court of the Judge Family Courts, Central District, Tis Hazari Courts, Delhi, taking the said aspect into account for the maintenance of peace and harmony between the parties it is considered appropriate to put a quietus between the parties in relation to the FIR in question, the FIR No.250/2018, PS Prasad Nagar under Sections 308/324/323/506 of the Indian Penal Code, 1860 against the petitioner is thus quashed.

The petition is disposed of.

ANU MALHOTRA, J NOVEMBER 12, 2020 sv Signature Not Verified Digitally Signed By:SUMIT GHAI Signing Date:12.11.2020 19:25:38 This file is digitally signed by PS to HMJ ANU MALHOTRA.

IN THE HIGH COURT OF DELHI AT NEW DELHI JUGAL KISHORE versus STATE & ORS.

12.11.2020 CW-1 SI Sanjay Kumar Police Station Prasad Nagar On S.A. I identify the petitioner Jugal Kishore present in the Court today as being the only accused arrayed in the FIR No.250/2018, PS Prasad Nagar under Sections 308/324/323/506 of the Indian Penal Code, 1860 and I also identify the respondent no.2 Chentamani @ Rajni present in the Court today as being the complainant of the said FIR and I also identify respondent No.3 Yashoda present in the Court today as being the injured.

RO & AC
12.11.2020

ANU MALHOTRA, J

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JUGAL KISHORE versus STATE & ORS.

12.11.2020 CW-2 Ms.Chentamani @ Rajni D/o Late Sh. Prakash R/o 16/546-H, Bapa Nagar, Karol Bagh, New Delhi, Aged 33 years.

On S.A. A settlement has since been arrived at between me and the petitioner pursuant to which the marriage between me and the petitioner has since been dissolved vide a decree of divorce through mutual consent under Section 13 B(2) of the Hindu Marriage Act, 1955, dated 4.10.2019 in HMA No. 1535/2019 of the court of the Judge Family Courts, Central District, Tis Hazari Courts, Delhi. In terms of the settlement I have received a total sum of Rs.1,50,000/- from the petitioner. In the circumstances, I do not oppose the prayer made by the petitioner seeking quashing of the FIR No.250/2018, PS Prasad Nagar under Sections 308/324/323/506 of the Indian Penal Code, 1860 nor do I want him to be punished in relation thereto. I have studied till standard VIII and used to work in a parlour. I have understood the implications of making the statement and that I have made my statement voluntarily of my own accord without any duress, pressure or coercion from any quarter.

RO & AC
12.11.2020

ANU MALHOTRA, J

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JUGAL KISHORE versus STATE & ORS.

12.11.2020 CW-3 Mrs.Yashoda W/o Late Sh. Prakash R/o 16/546-H, Bapa Nagar, Karol Bagh, New Delhi. Aged 60 years.

On S.A. The petitioner was my son-in-law and has since been divorced from my daughter. I do not oppose the prayer made by the petitioner seeking quashing of the FIR No.250/2018, PS Prasad Nagar under Sections 308/324/323/506 of the Indian Penal Code, 1860 nor do I want him to be punished in relation thereto. I have made my statement voluntarily of my own accord without any duress, pressure or coercion from any quarter. I am not literate but I have understood the implications of making the statement and that I have made my statement voluntarily of my own accord without any duress, pressure or coercion from any quarter and I do not want to think again.

RO & AC
12.11.2020

ANU MALHOTRA, J

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JUGAL KISHORE versus STATE & ORS.

12.11.2020 CW-4 Jugal Kishore s/o Late Sh. Sohan lal R/o 16/597, Bapa Nagar, Karol Bagh, New Delhi-110005, Aged 39 years..

On S.A. The settlement arrived at between me and the respondent No.2 is with my consent. I undertake not to harass the respondent No.2.

RO & AC
12.11.2020

ANU MALHOTRA, J

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